

BOYLE VS. FRIESEN GROUP INC

CASE NUMBER: 26CV-0210559

Tentative Ruling on Demurrer: Defendant, Friesen Group, Inc. demurs to the Twelfth Cause of Action of the Complaint filed by Plaintiff Daniel Boyle. Plaintiff opposes the demurrer.

Meet and Confer. Defendant has provided evidence of sufficient effort to meet and confer prior to filing the Demurrer.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Complaint filed on April 30, 2026. The request is granted pursuant to Evid. Code § 452.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the Twelfth Cause of Action for failure to provide accurate, itemized wage statements in compliance with Labor Code § 226 on the grounds that it fails to state facts sufficient to constitute a cause of action.

“[A]n employer is required to identify only those statutory items that are part of the employee's current monetary compensation. The employer must provide the employee with an itemized statement identifying the specific wages being paid at the time of the payment (or at least semimonthly).” *Soto v. Motel 6 Operating, L.P.* (2016) 4 Cal.App.5th 385, 393. “Section 226, subdivision (a) requires an employer to provide employees with “an accurate itemized statement” that includes: (1) gross wages earned; (2) total hours worked; (3) certain information for employees paid on a piece-rate basis; (4) all deductions; (5) net wages earned; (6) the pay period; (7) the employee's name and identifying information; (8) “the name and address of the legal entity that is the employer”; and (9) all applicable hourly rates.” *Savea v. YRC Inc.* (2019) 34 Cal.App.5th 173, 178. “[A]n employee is deemed to be injured if the employer either fails to provide any wage statement or if it provides a wage statement that fails to provide “accurate and complete information” about certain items such that the employee “cannot promptly and easily determine from the wage statement alone” certain specified wage-related information.” *Naranjo v. Spectrum Security Services, Inc.* (2024) 15 Cal.5th 1056, 1070.

Defendant first argues that Plaintiff cannot establish that he suffered injury. Here, paragraph 102 of the Complaint alleges that “Defendant failed to provide Plaintiff with accurate, itemized wage statements in writing...Specifically, the wage statements given to Plaintiff failed to account for the unpaid wages, overtime, and premium pay for deficiently provided meal and rest periods...” “[T]he wage statement requirements apply to amounts *earned*, even if those amounts were not paid because of confusion over whether the amounts were owed in the first place.” *Naranjo*, supra, 15 Cal.5th 1056, 1076. The Court finds the Complaint sufficiently alleges that Defendant failed to include unpaid wages, overtime, and premium pay in itemized wage statements, thereby creating a presumption of injury. Paragraphs 15 through 17 of the Complaint sufficiently put Defendant on notice that the alleged unpaid wages, overtime, and premium pay were the result of the alleged failure of Defendant to provide meal and rest breaks. The details regarding dates, times, and amounts are not necessary at the pleading stage and may be obtained through discovery.

Defendant also argues that the Complaint fails to sufficiently plead “knowing and intentional” conduct to permit the monetary remedy requested. “To establish a “knowing and intentional” violation of Labor Code section 226, subdivision (a), an employee must demonstrate that the employer was ““aware of the factual predicate underlying the violation[s].” *Furry v. East Bay Publishing, LLC* (2018) 30 Cal.App.5th 1072, 1085. Labor Code § 226(e)(3) clarifies that “a “knowing and intentional failure” does not include an isolated and unintentional payroll error due to a clerical or inadvertent mistake.” “An employer that believes reasonably and in good faith, albeit mistakenly, that it has complied with wage statement requirements does not fail to comply with those requirements knowingly and intentionally.” *Naranjo*, supra, 15 Cal.5th 1056, 1087.

In this instance, the Complaint only alleges that “Defendant knew, or reasonably should have known” the unpaid wages were owed to Plaintiff. However, the Twelfth Cause of Action also incorporates allegations previously set forth which includes the factual predicates underlying the violations. For example, paragraph 15 alleges that “despite Plaintiff being forced to work through Plaintiff’s meal breaks, Defendant Friesen Group Supervisors Blaine (last name unknown) and Trevor (last name unknown) clocked Plaintiff in and out for Plaintiff’s meal breaks.” Additionally, paragraph 16 alleges that “Plaintiff was contacted by Defendant Friesen Group supervisors about work-related tasks during Plaintiff’s meal and rest breaks.” The Court finds the Complaint sufficiently alleges “knowing and intentional” conduct.

The Demurrer is **OVERRULED**. Defendant provided a proposed Order that will be modified to reflect the Court’s ruling.

Tentative Ruling on Motion to Strike: Defendant Friesen Group Inc. moves to strike the prayer for punitive damages, injunctive relief, and all references to allegations that Defendant acted “fraudulently, maliciously, and oppressively with a conscious, reckless, and willful disregard, and/or with callous disregard” related to First, Second, Third, Fourth, Fifth, and Sixth Causes of Action in the Complaint filed by Plaintiff on April 30, 2026. Plaintiff opposes the motion.

Meet and Confer. Defendants provided sufficient evidence of meet and confer efforts prior to filing the Motion to Strike.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Complaint filed on April 30, 2026. The request is granted pursuant to Evid. Code § 452.

Merits. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b).

Punitive damages. Defendant moves to strike all references in the Complaint to punitive damages and page 5 ¶ 27; page 7 ¶ 35; page 8 ¶ 43; page 9 ¶ 52; page 10 ¶ 60; and page 11 ¶ 68 all of which allege that Defendant acted “fraudulently, maliciously, and oppressively with a conscious, reckless, and willful disregard, and/or with callous disregard.” Defendant argues that Plaintiff has not adequately alleged facts sufficient to satisfy Civil Code section 3294. That section provides that a plaintiff may recover punitive and exemplary damages where clear and convincing evidence establishes that defendant has been guilty of oppression, fraud or malice.

“In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with

a willful and conscious disregard of the rights or safety of others. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Fraud is an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (internal citations omitted).

Simply characterizing a defendant's conduct as "intentional, willful, malicious, fraudulent, [or] false" is patently insufficient to support a claim. *Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033. Allegations that a defendant's conduct was wrongful, willful, wanton, reckless, or unlawful charge negligence or nondeliberate injury, which do not rise to the level of malice. *Ibid.*

Plaintiff's factual allegations in the Complaint do not support a prayer for punitive damages. Plaintiff generally alleges that Defendant discriminated and retaliated against Plaintiff by terminating his employment. There are no allegations of conduct *intended* by Defendant to cause injury; of despicable conduct subjecting Plaintiff to cruel and unjust hardship in conscious disregard of his rights; or of intentional misrepresentation or concealment with intent to cause injury.

Additionally, Defendant alleges the Complaint fails to identify any officer, director, or managing agent of Defendant required for corporate liability under Civ. Code § 3294(b). “Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees.” *Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167. “With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” Civ. Code § 3294(b). Here, the Complaint does not allege that an officer, director, or managing agent of the corporation engaged in conduct of any kind, never mind conduct rising to the level to permit punitive damages.

The Motion to Strike the prayer for punitive damages and page 5 ¶ 27; page 7 ¶ 35; page 8 ¶ 43; page 9 ¶ 52; page 10 ¶ 60; and page 11 ¶ 68 is **GRANTED**.

Injunctive relief. Defendant argues that the relief requested on page 18, ¶ 126 is inappropriate because Labor Code § 1194.5 vests the authority to seek an injunction exclusively with the Division of Labor Standards Enforcement and because there is no likelihood of future harm.

Labor Code § 1194.5 states that “[i]n any case in which a person employing an employee has willfully violated any of the laws, regulations, or orders governing the wages, hours of work, or working conditions of such employee, the division may seek, in a court of competent jurisdiction, and the court may grant, an injunction against any further violations of any such laws, regulations, or orders by such person.” The plain language of the statute expressly allows the “division” to seek an injunction. Plaintiff has not provided any authority to support the claim that the statute is permissive, allowing an individual to bring a request for injunction under the section. The Court finds the requested relief unavailable, therefore the Motion to Strike page 18 ¶ 126 is **GRANTED**.

In summary, the Motion to Strike is **GRANTED** as outlined above. Defendant provided a proposed order that will be executed by the Court.

GERLINGER FOUNDRY AND MACHINE WORKS, INC. VS. CONXTECH, INC.

CASE NUMBER: 26CV-0209989

Tentative Ruling on Motion to Set Aside and Enter Judgment Pursuant to CCP §§ 473(b) and 664.6: Plaintiff Gerlinger Foundry and Machine Works, Inc. seeks to enforce a settlement agreement reached between